

STATE OF NEW YORK

2617--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 21, 2025

Introduced by M. of A. SOLAGES, GRIFFIN, LAVINE -- read once and referred to the Committee on Environmental Conservation -- recommitted to the Committee on Environmental Conservation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public authorities law, the public health law, the clean water infrastructure act of 2017, and the real property tax law, in relation to providing access to water quality infrastructure improvement funding to water utilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 34 of section 1281 of the public authorities
2 law, as added by chapter 413 of the laws of 1996, is amended to read as
3 follows:

4 34. "Recipient" shall mean any municipality, public utility, homeown-
5 ers association with a private well who cannot access public water, or
6 person, including any individual, firm, partnership, association, not-
7 for-profit corporation or other corporation organized and existing under
8 the laws of the state or any other state which is empowered to construct
9 and operate an eligible project, or any two or more of the foregoing
10 which are acting jointly in connection with an eligible project;
11 provided any project by a water utility shall have a clear and definite
12 public purpose and shall benefit the customers of the water system.

13 § 2. Subdivision 10 of section 1160 of the public health law, as
14 added by chapter 413 of the laws of 1996, is amended to read as
15 follows:

16 10. "Recipient" means any municipality, public utility, homeowners
17 association with a private well who cannot access public water, or
18 person, including any individual, firm, partnership, association, not-
19 for-profit corporation or other corporation organized and existing under
20 the laws of the state or any other state which is empowered to construct

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 and operate an eligible project, or any two or more of the foregoing
2 which are acting jointly in connection with an eligible project;
3 provided any project by a water utility shall have a clear and definite
4 public purpose and shall benefit the customers of the water system.

5 § 3. Paragraph a of subdivision 3 of section 6 of part T of chapter 57
6 of the laws of 2017, constituting the clean water infrastructure act of
7 2017, is amended to read as follows:

8 a. The environmental facilities corporation shall undertake and
9 provide state financial assistance payments, from funds appropriated for
10 such purpose, to municipalities and water utilities regulated by the
11 public service commission in support of water quality infrastructure
12 projects provided, however, in any such year that funds are appropriated
13 for such purpose, no municipality or water utility shall receive more
14 than five million dollars of appropriated funds, and any project by a
15 water utility shall have a clear and definite public purpose and shall
16 benefit the customers of the water system. Such state financial assist-
17 ance payments shall be awarded only to water quality infrastructure
18 projects for:

19 (i) replacement or repair of infrastructure; or
20 (ii) compliance with environmental and public health laws and regu-
21 lations related to water quality.

22 § 4. Subdivision 17 of section 102 of the real property tax law, as
23 amended by chapter 569 of the laws of 1996, is amended to read as
24 follows:

25 17. "Special franchise" means the franchise, right, authority or
26 permission to construct, maintain or operate in, under, above, upon or
27 through any public street, highway, water or other public place mains,
28 pipes, tanks, conduits, wires or transformers, with their appurtenances,
29 for conducting water, steam, light, power, electricity, gas or other
30 substance. For purposes of assessment and taxation a special franchise
31 shall include the value of the tangible property situated in, under,
32 above, upon or through any public street, highway, water or other public
33 place in connection therewith. The term special franchise shall not
34 include central office equipment or station equipment (except public
35 telephone terminal equipment) which first appears on assessment rolls
36 prepared on the basis of taxable status dates occurring on or after
37 October first, nineteen hundred ninety-five and which is owned by a
38 telephone company as defined in paragraph (d) of subdivision twelve of
39 this section, or owned by a telephone corporation as defined in subdivi-
40 sion seventeen of section two of the public service law and certified by
41 the public service commission under section ninety-nine of such law, nor
42 shall it include property of a municipal corporation, public benefit
43 corporation or special district, nor shall it include a crossing less
44 than two hundred fifty feet in length of a public street, highway, water
45 or other public place outside a city or village, unless such crossing be
46 the continuation of an occupancy of another public street, highway,
47 water or other public place. For a water utility, the term special fran-
48 chise shall not include the value of water infrastructure improvements
49 funded or financed through the clean water infrastructure act of 2017,
50 or the drinking water revolving fund pursuant to section 1285-m of the
51 public authorities law, provided that any tax relief realized through
52 such exemption shall be used to reduce current water rates and offset
53 future water rate increases.

54 § 5. This act shall take effect immediately.